

cover story PAKISTAN

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"This is Martial Law," pointed out Khalilur Rahman Ramday, one of the ousted senior judges of the Supreme Court. "A state of Emergency can be declared under the Constitution, but no order can replace the Constitution. This is patently illegal." Pointedly, General Musharraf issued the orders as army chief, not as the President.

Musharraf has claimed that the federal and provincial cabinets will continue to govern "as nearly as may be, in accordance with the Constitution" and the existing legislatures—all except that of the North West Frontier Province, which was dissolved in September—will continue to exist till the expiry of their terms. But with fundamental rights suspended and no real Constitutional sanction, the cabinets and the legislature are unlikely to be anything more than rubber stamps.

Unlike in 1999—when the General had also suspended the Constitution and issued an order after his coup against premier Nawaz Sharif's gov-

HISTORY REVISITED: Armed personnel are back on the streets; file photo of sacked Chief Justice Chaudhry (right) being greeted by lawyers

ernment—most people expect this spell of direct martial rule to be far harsher, as already evidenced by the nationwide brutal crackdown on dissent and the arrests of hundreds of protesting lawyers and civil society activists.

What makes this spell of martial rule different is that in 1999 Musharraf had the backing of a large segment of the population, which was fed up with Sharif's misrule and Benazir Bhutto's alleged corruption. He also had the backing of most of the judiciary which validated his takeover for an initial three years and there was no lawyers' movement against him. He was also welcomed by the media as a liberal who opened up the sector. Slowly, over the past eight years, particularly over the past eight months, Musharraf has frittered away the goodwill that had been his strength. He now faces severe challenges to his

rule as an isolated figure in a world different from the one he came into.

For most of November 3, despite strong rumours from the day before that the government was about to initiate "drastic measures", most of Pakistan went about its business, unwilling to believe that anything dire could be possible. The speculation had stemmed from the drawn-out ending of the court case being heard by an 11-member Supreme Court bench regarding Musharraf's eligibility to remain President. General Musharraf's inner coterie was obviously on the edge but for most Pakistanis it was another political drama to be followed over the course of the coming days. Far more riveting in the immediate term for them was the news coming out of Swat in the north-west where a white steed-riding militant, Fazlullah, also known as Maulana Radio—because of the illegal FM channels he controls—had taken